The Free-Market Family: Liberalism, Families, and Government's Responsibility to Regulate the Market

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The movement to recognize that dependency is a basic feature of the human condition has helped liberal theory make great strides in the last three decades. In that time, many writers, including myself, have called attention to the fact that the autonomous citizens depicted in liberal political theory are never, in fact, completely autonomous in the sense that all they need from others is protection from encroachment on their rights (Eichner 2010). Further, to the extent that citizens are autonomous at all, they become so only through a long developmental process that requires copious amounts of caretaking and human development.

Attention to the fact of dependency, these theorists have asserted, changes the basic responsibilities of government. No longer can the state simply guarantee some combination of the freedom and equality that an autonomous adult would require, as traditional liberal theory would have it. Instead, the state must also concern itself with the project of ensuring that those within its borders get the caretaking and human development they need to become the sound adults depicted in liberal theory. Furthermore, the state must concern itself with ensuring that these sound adults stay that way, which also requires ensuring that adults get the caretaking they need. These responsibilities in turn require that the state attend to the wellbeing of families, the principal institution in which these tasks are accomplished in our society.

Families, though, are not black boxes that will produce the same outcomes regardless of their circumstances. Instead, the environment in which they function critically affects their wellbeing, as well as their ability to provide the caretaking and human development their members need. In modern, industrialized society, one of the institutions that most profoundly affects families is the market.[1]

Friedrich Engels long ago called attention to the market's profound and, in that case, deeply harmful, effects on working-class families in his description of life in Manchester, England during the Industrial Revolution. In his account, the grueling demands of industrial labor decimated working-class families' caretaking and human development functions. Market imperatives caused men, women, and children to work from early morning to late at night, leaving them too exhausted to nurture children. Meanwhile, infants were drugged with laudanum into quiet in their parents' unheated flats while their families worked. The consequence was that children were never properly socialized. In short, the brutal economic circumstances that prevailed suffocated feelings of love and affection, eviscerated caretaking and human development, and led to the breakdown of the family (Engels [1845] 1975, 424-425).

Contemporary examples of the market's destructive effects on families in the United States, where I write, tend to be somewhat tamer than in Engels' time. Yet market forces are nevertheless having profoundly negative effects on U.S. families from the bottom to the top of the income ladder. These pressures create problems that look very different for families of different classes. Low-income families, and particularly poor families, clearly have it worst of all. Uncertain job prospects and low wages mean that many adults in this group won't ever form the stable partnerships they badly want. Because of this, rising numbers of children are

[1] I use the term "market" in the same way politicians and economists use it: as a metaphor for a decentralized system of exchanges in which buyers and sellers trade goods and services. Some of the results that come out of this system of exchanges – including the wages that laborers are paid, and the prices consumers pay for goods and services – are what I call here "market forces."

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born to unmarried parents, and most children are at some point raised by single mothers. In addition, the economic pressures on low-income families mean that they can't give their kids the sound start they need.

Yet the market's harmful pressures extend even to families at the top of the income ladder. Families headed by professionals at the top of the income ladder generally have the money they need to support their families (although it may not always feel that way to them). But the long hours typically demanded by their jobs, combined with the many hours they put in to make sure that their kids will be economically stable once they leave home, make life a grinding slog. Their stress and exhaustion is aggravated by technology that means these parents are never completely off-the-clock, and always checking texts and emails from work, even when they're home. Meeting all these demands leaves them stressed and overwhelmed.

Despite the harmful effects of contemporary market forces on families, government's responsibility to regulate the market, and to ensure that the economy supports families, remains significantly undertheorized in liberal theory. This essay begins to fill that gap.[2] Part I argues that a fundamental responsibility of the liberal state must be to regulate societal institutions in order to support the circumstances that families need to thrive. Part II outlines the many ways that market forces in the United States are undermining the health of families. Part III argues that, insofar as the market isn't delivering families the circumstances they need, it is government's role to regulate markets and to structure the economy in order to support families. The first section explains that markets are not, as is often thought today, the economy itself. Instead, they are but one part of the economic system whose job, properly conceived, is to ensure that goods and resources support the wellbeing of citizens. This in turn necessitates supporting the wellbeing of families. The second section then lays out the tenets that should govern economic regulation to support families. These tenets would embed both markets and families into a larger economy whose purpose is to ensure that individuals get the resources they need – through families, market, and the government – to thrive.

I. The Liberal State Must Support the Conditions in Which Families Thrive

Until recently, liberal political theory has had little to say about the inevitability of dependency in human lives. Liberalism, particularly in its American versions, has largely conceived of citizens as able adults, and has focused on them as individuals rather than as members of families. Conceptualizing citizens in this manner has served valuable functions: It has helped ground the liberal moral ideal that all citizens should be treated as free and equal. It has also justified the important notion that all citizens have an entitlement to rights that the state should safeguard.

Yet while the liberal conception of humans as able adults is an important moral ideal, it is still only a moral ideal. It is not, as it is often treated, an adequate understanding of the reality of the human condition. In truth, people spend most of their lives dependent on one another to some greater or lesser degree. They are born as helpless babies and live in near total dependence on others for much of the first decade of their lives. They spend their next decade requiring considerable assistance from others. During these first two decades, and often longer, they will require extensive caretaking, assistance with human development, and considerable material

[2] I discuss these issues in more detail in my book, *The Free-Market Family: How the Market Crushed the American Dream (and How It Can Be Restored)* (Oxford University Press, 2020).

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resources including food, clothing, a roof over their heads, and more, to become healthy, flourishing adults and contributing members of the polity.

Some small but significant number of citizens will never achieve a significant degree of independence from the caretaking of others because of physical or mental disabilities. Most others will enter an adulthood in which they are largely, although never completely, independent. Adults are not islands unto themselves; virtually all adults have some periods in which they require significant caretaking because of physical or mental illness, and most have intermittent periods of such dependence. And as they age and approach the end of life, most adults will become increasingly dependent on others for care (Brault 2010, 4).

Focusing on the dependency of the human condition makes the picture of what citizens need from their government more complex than mainstream versions of liberal theory would have it. If adults are conceived as capable and autonomous, the respect for human dignity that grounds liberalism requires, above all, ensuring their freedom and equality. Mainstream theorists therefore debate how each of these two goods should be traded off against the other to best support human dignity (e.g., Rawls 1971). These theorists also consider how central liberal institutions should be structured to support the goods of freedom and equality, accepting the longstanding view that government should regulate to ensure sovereignty of the people; a limited state; and the security of its citizens.

Once we adjust the image of citizens to account for the dependency in the human life cycle, however, respect for human dignity entails more than just protecting citizens' individual rights: The importance of caretaking and human development come to the fore as every bit as important to human dignity as safeguarding citizens' liberty and security, or ensuring a just distribution of societal goods among citizens. This transforms the liberal democratic project. Respect for human dignity now demands more than the protection of individual rights and freedom. It also requires considering how we can bring into being, care for, and develop the faculties and virtues of sound citizens. The state's responsibility to ensure a society can support caretaking and human development becomes every bit as fundamental as its responsibility to establish an adequate police force and military in order to safeguard citizens' individual rights. The importance of caretaking and human development, in turn, calls attention to the role of the family, which, as our society is currently structured, has been the institution largely responsible for performing these functions, as well as for meeting the material needs of dependent family members.

The term "family," as used here, is defined expansively. A wide range of long-term relationships foster the wellbeing, caretaking, and human development that humans need to flourish. These relationships extend well beyond the heterosexual marital family together with their minor children – the grouping that many used to think of as the "natural" family. Today's families include, among others, single-parent families, same-sex couples, with or without kids, unmarried cohabiting couples, adults with aging parents, and adult siblings.

To the scant extent that mainstream liberal theory has attended to families it has generally conceptualized them through the lens of liberal autonomy. In this reading, families, like the adults within them, are and should be autonomous. The goal of public policy, in this view, is to keep the family as free as possible from state intervention. Furthermore, as this view has it, the state should be neutral with respect to the health and wellbeing of families.

This standard view of the state's relationship to families, though, gets it wrong on two counts. First, it misunderstands the relationship between the state and families. In today's complex society, the ways in which families function are always deeply and inextricably

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intertwined with government policy. To mention just a few examples, child-labor laws keep children financially dependent on their parents; equal employment legislation has encouraged women's movement into the labor market and out of the home; and Social Security survivors' benefits influence some recipients not to marry. Most importantly, for the purposes of this chapter, law and public policy affect families' ability to deal with dependency needs. The family has no "natural" baseline of functioning that it can be left to apart from the state and public policy, and that would be adulterated if the state were to intercede. Nor does the modern administrative state have a neutral, isolated position it can assume while leaving families autonomously to deal with their own affairs. Instead, the state is always and continually influencing how families conduct their affairs. The relevant question is not whether its actions can avoid affecting families, but rather whether it will consider the implications for families when it does act.

Second, the expectation that the state should be neutral with respect to families is wrong as a normative matter. The critical role that sound families play in the lives of flourishing citizens makes them central to the success of the liberal project. In carrying out this project, the state cannot equally take or leave families (at least without vastly overhauling how we deal with dependency issues in our society). As society is organized, a large proportion of the caretaking and human development that people need to flourish will come from families, if it comes at all. This means that, to succeed, the liberal enterprise requires families that have the resources and the capacity to support and nurture their members.

We need a better theory of the state's role with respect to families, one that accounts for the fact of human dependency, and the critical role that families play in resolving dependency issues. In place of positioning the liberal state as distant from and neutral to families, I propose that we treat ensuring the conditions that support sound families as a basic responsibility of government. By the term, "sound families," I mean the strong, stable relationships that can support the caretaking, human development, and material needs of their members.

But why must the state support sound families? Can't we expect individuals to arrange the circumstances and provide the support that families need on their own, without state assistance? Because raising children, caring for dependents, and developing human capabilities are time-consuming and complex tasks that generally are part of a process that takes years. During this time, families inevitably have to interact with a number of institutions that profoundly affect their health, as well as heavily influence their ability to provide the circumstances family members' need. Individual family members have little ability to change the rules of the game that structure these institutions. The state though, has a unique ability to regulate societal institutions in ways that support families. This ability, coupled with the importance of sound families to the liberal project, means that the state should treat regulating to support families as a basic part of the liberal project. Doing so would recognize that the ability of families to nurture their members does not simply exist as a matter of fact or spring up as a matter of spontaneous generation. Instead, it is an achievement that must be accomplished jointly by both citizens and the state.

We don't have to believe that families are perfect to recognize the state's responsibility to facilitate conditions that support them. The fact of the matter is that all families are imperfect, many reinforce some dynamics like sex inequality that are problematic, and some are downright abusive. These imperfections and risks are not, however, reasons for the state to avoid support for families. That's because we have no other credible alternative in our society for dealing with the great bulk of caretaking and human development needs. Because of this, most people will

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continue to get much of what they need through families, if they get them at all. This gives the state strong reason to construct supports in ways that address and cabin these flaws, for example through measures that seek to minimize gender inequality and domestic abuse. The flaws that all families have also means that the state should build some redundancy into institutions, for example providing human development at schools to help make up for children not getting all they need at home. In addition, the state should seek to ensure that exiting families is both safe and practicable for adults within abusive relationships, and that an adequate foster-care system is in place for abused children who need to be removed from their homes.

In sum, despite all the faults of actual families, we haven't developed other institutions that come close to meeting the attachment, caretaking, and human development needs that families provide. And that makes state support for sound families critical to sound lives, as well as central to the liberal project

II. How Deregulated Markets Undermine Sound Families

In industrial capitalist societies today, the market is one of the most important institutions – probably *the* most important institution in many countries – that affects families' ability to accomplish the caretaking and human development tasks we need them to perform. Workers' participation in the labor market affects how much and which blocks of time they have for the caretaking of family members. Families' ability to provide income for their members depends on their ability to negotiate pay in the labor market or otherwise to make money, as well as on general market conditions. Market forces also influence how long a parent can stay home after the birth of a child, and whether and when they will return to work. The same is true for how much time off family members can take to take care of ailing family members. Finally, both parents' income and the market price of daycare determine the quality of daycare they can afford if they do work. The same is true for the paid home health or caretaking services a family can afford for sick family members or those with disabilities. Given the extent to which the market influences how families function, this section makes the case, the state must regulate the market to support the conditions sound families need.

The view that government should regulate the market to support families is starkly opposed to the public policy that reins in the United States. In the last half century, U.S. politicians and regulators have increasingly chosen to deregulate markets, on the view that a booming "free market" is all that families need to flourish. Of course, anyone who has paid any amount of attention to markets knows that they are never truly free or unregulated. A market system couldn't exist in the absence of significant government regulation, including laws that established a stable currency, enforced property rights, backed contracts with the force of law, and so forth. What this means is that when people use the terms "free" or "deregulated" to apply to markets, they don't really mean these markets aren't regulated at all. Instead, they mean that these markets aren't regulated with non-market goals in mind, like promoting fairness, good family lives, or other social welfare goals. I'll use these terms in the same way in this essay.

Public policy that focuses on deregulating markets, which I'll call "free-market policy," is supposed to give families everything they need to thrive. In fact, politicians, pundits, and many Americans believe that insulating families from market forces makes them weaker and "dependent" on government. A vast array of empirical evidence from these last decades demonstrates this prevailing regulatory theory is emphatically wrong. To keep the scope of this

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chapter within reasonable bounds, I'll demonstrate why this is the case specifically for families with young children. A similar case could be made focusing on parents of older children, adults with aging parents, or the many other family relationships that are inadequately supported today.

In the last five decades, the U.S. economy has tripled. Yet mushrooming rates of economic inequality and insecurity have increasingly destabilized poor and working-class American families. Today, opposite-sex couples without college degrees are marrying far less than they used to (Reeves, Sawhill and Krause (2016); Wilcox and Marquardt 2010, 15). This isn't because they don't want to marry. In fact, the vast majority aspire to marriage and believe it is the best family arrangement for children (McLanahan 2009, 118). Instead, they don't because they don't see themselves and their partners as economically stable enough (Gibson-Davis, Edin, and McLanahan (2006), 1307). Their hesitation to marry particularly reflects the dimmer economic prospects for the men in these communities in recent decades. The collapse of U.S. manufacturing jobs means that more men today are competing for low-skill jobs that pay less, have fewer opportunities for advancement, and are less secure than several decades ago. The couples who would have married decades ago have cut back bearing children, but not by as much as they have decreased marriage. The result is that the rates of nonmarital births among poor and working-class women have shot up (Cherlin 2014, 6-7, 9-10, 126). The unmarried relationships into which these children are born are far more likely to break up than marriages. These fragile relationships create complex and unstable family patterns that result in worse outcomes for children (Cherlin 2014, 5; McLanahan 2009, 120).

Yet poor and working-class families are not the only ones being hurt by market forces. Adults in families from the top to the bottom of the income ladder are being thrown into tumult by employees' work schedules. Full-time U.S. workers worked an average 47-hour workweek in 2014 (Saad 2014). This is a far longer workweek than workers put in in other wealthy democracies, all of which limit work hours to protect families (OECD 2019; Gornick & Meyers 2003, 157, 161**)**. What is more, because more women work today than did half a century ago, most *families* today work almost double the paid work hours that U.S. families worked two generations ago (Jacobs & Gerson 2004; Mishel 2013). Two-earner families in the United States—six in ten of all married couples—now spend a combined average of 83 hours a week at their paid jobs (Medalia and Jacobs 2008, 149 tbl. 6.3). This leaves families far less total time away from paid work to deal with caretaking, homemaking, and the rest of their lives.

Focusing only on the *average* family's work schedule, though, misses a key way that market forces are undercutting American families. It turns out that far fewer workers today work schedules close to the average number of hours (Frase and Gornick 2013, 709-710). Since the 1970s, market forces have increasingly divided workers and their families into two very different groups. One group—generally those more educated, with higher incomes—is working far more hours than the already high average hours of American parents. Meanwhile, another group—generally those less educated, with lower incomes—works far fewer hours. College graduates are far more likely to work 50 hours or more a week than workers with less education (Jacobs and Gerson 2004, 31-40, 48-55; Kuhn and Lozano 2008, 311-19). The price of good jobs that support your family today is spending a massive part of your life in paid work.

The long work hours that many American workers now put in encroach heavily on family lives. Almost half of workers who work 50 or more hours a week regularly work on weekends (Jacobs and Gerson 2004, 35). Even an employee at the low end of those hours would likely need to work a full five hours over the weekend, which would still leave 45 hours to be worked during the week. This is a long schedule for parents with young kids. Assuming an

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average commute of 25 minutes each way and a half hour for lunch, the parent would be gone for almost ten and a half hours a day. With a 7:30 a.m. drop-off at daycare, that only puts the parent back for daycare pickup at 6:00 – not a lot of time for spending quality time with young children and almost none for the rest of life's obligations and pleasures.

This time crunch is exacerbated for parents of young children who also have aging parents – the so-called "sandwich generation." One-quarter of Americans with a parent aged 65 or older report that the parent needs help with handling affairs or caring for themselves (Parker and Patten 2013, 1, 7). Most of the family members who provide care are employed (Feinberg and Choula 2012, 1). Of those who provide care, more than half say that providing this assistance is stressful (Parker et al. 2015, 41).

The less-educated parents at the bottom of the economic ladder face their own, even greater, set of challenges as a result of the market. They have the opposite problem from families at the top: too few hours of paid work. Increasing numbers of them work fewer than 30 hours a week (Jacobs and Gerson 2004, 34-37; Kuhn and Lozano 2008, 318). This drop in hours, together with their decreased real wages, make it a constant struggle to support their families. On top of that, the parents in these families are increasingly being assigned work through high-tech scheduling systems. These systems maximize employer profits by moving workers from place to place and time to time to match customer demand with little advance notice. They are then dismissed from work when customer demand is lower than expected (Kantor and Hodgson 2014). As if those aren't enough burdens to put on the shoulders of low-wage families, workers are increasingly being asked to work nights and weekends. More than a quarter of U.S. workers perform some work between 10 p.m. and 6 a.m. Almost one in every three U.S. workers works over the weekend (Hamermesh and Stancanelli 2015, 1009 tbl.1, tbl.2). Working these irregular hours can wreak havoc on family schedules (Wight, Raley, and Bianchi 2008, 266-267).

If family members don't want to work the long and irregular hours so many Americans do, why don't they just say no? Doing so would leave those workers who want to work more or work irregular hours to negotiate for longer hours with more pay, right? This approach is how most U.S. policymakers claim markets work. The problem with this argument is that it misses the way that inequality and insecurity, both of which have mushroomed in the American economy in past decades, affect workers' ability to bargain for what they want. It turns out that inequality, particularly at the top of the economic ladder, increases the incentives for workers to work long hours in hopes of making it up those next rungs (Bell and Freeman (2001), 200). This is particularly the case when inequality increases within a particular job category (Kuhn and Lozano 2005, 31). Increases in economic insecurity also motivate longer hours from workers. Even relatively small doubts about job security have this effect. This is true not just for low-wage workers, but also for workers close to the top of the economic ladder (Boswell, Olson-Buchanan, and Harris 2014; Sverke, Hellgren, and Näswall 2002).

All of this – the growing economic inequality, combined with increasing economic insecurity – create, in Harvard economist Richard Freeman's words, both a carrot and stick that push Americans to work long hours:

> The carrot is that Americans who work hard have a better chance of being promoted, moving up in the wide distribution of earnings, and experiencing substantial earnings increases. The stick is that Americans who lose their jobs

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suffer greatly because the United States has a minimal safety net for the unemployed (Freeman 2007, 59).

One place that the pressure to work more shows up clearly is with workers' vacation time. The United States is the only wealthy country that does not mandate that employees receive paid vacation time. Three-quarters of employers still provide some paid vacation or holidays off, although for significantly fewer days than European countries require. When employees do get paid time, the average number of days is sixteen, including vacation days and paid holidays. This is about half the number of days employees receive in Austria, Finland, and France (Ray, Sanes, and Schmitt 2013, 2, 4 tbl. 2). Yet in 2010 almost half of American workers didn't take all of their available leave. In contrast, nine in ten French workers took all of the much longer leave available to them (Reuters/Ipsos 2010).

Why do U.S. workers leave the meager amount of paid vacation time that they do get on the table? Because of the powerful mix of economic inequality and insecurity we've been brewing in the United States for the past half century. Employees are significantly more likely to take less vacation time the more insecure they feel on their job (Maume 2006, 184). Something similar happens when it comes to paternity leave. Fathers report that they would like to take more leave, but don't because of fear that they will be judged as less committed to their work (Harrington et al. 2015, 10). Family lives suffer as a result.

All this results in most U.S. working parents reporting difficulty balancing work and family, as well as high levels of stress. More than a third say they always feel rushed, even to do the things they have to do (Parker and Wang 2013, 19). This time stress is worse toward the top of the economic ladder. Seven in ten mothers with a college degree report that it is difficult for them to balance work and family life. Six in ten college-graduate fathers report the same (Pew Research Center 2015, 5).

But families at the bottom and, increasingly, the middle of the ladder have their own reasons to stress, since many of them worry about being unable to put food on the table for their kids. It's not just poor folks who have income that fall below the poverty line for some periods these days: An astounding 94 percent of people who earn between 100 and 150 percent of the poverty line fall under that line for at least one month per year. Among all Americans, over one-third—roughly 98 million people—were officially poor for at least two months between 2009 and 2012 (Morduch and Schneider 2017, 159; U.S. Census Bureau 2016). And many who don't fall below the poverty line are just one emergency away from that fate: In 2017, four in ten Americans reported not being able to cover an unexpected expense of $400 (Board of Governors of the Federal Reserve System 2018, 21).

While the U.S. market is tough on parents, it's even tougher on children. The expectation that parents will arrange for their children's needs privately through the market is devastating for U.S. kids, violating the liberal state's responsibility to support the caretaking and human development of its youngest citizens. The harm done to them will most likely be permanent. Most of what experts have learned about children's development in the last quarter-century shows the importance of children's first five years to their later achievement. In those first years, children either establish a fragile or a sturdy foundation for development throughout the rest of their lives. If children don't get what they need to flourish in those first years, this crucial window of opportunity is lost. It's much harder and more expensive to correct problems later on, if they can be corrected at all (Harvard Center on the Developing Child 2007, 1).

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A sound foundation requires, among other things, that children in their first years receive excellent caretaking, as well as adequate and stable material support. The problem here is that most young parents can provide one or the other – excellent caretaking or adequate material support – but not both, given that they are relatively early in their work lives, and are therefore making less than they likely will later, and have little money saved (Fry et al. 2011). If they stay home with their new child for the first months – the caretaking arrangement that research suggests is generally best for young kids (Waldfogel 2006, 49-57) – they can't give their kids the stable material support they need. But if they return to work to put food on the table, most can't afford the quality daycare their children need to develop best (Child Care Aware (CCA) of America 2016, 36-38). The difficulties for today's new parents in the United States are exacerbated by the fact that young couples have far less wealth than they used to, in part because of the steep rise in the cost of housing in the last decades, as well as the tremendous rise in the price of college (Fry et al. 2011).

Children from poor families have the toughest time in this free-market system. This is in part because parents likely can't provide the stable, adequate material support that their kids need. Yet we know that young kids need a baseline of consistent material support to do well. One recent study of U.S. grade schoolers showed that poverty in early childhood actually altered the physical makeup of children's brains. Children exposed to poverty in early childhood had less brain matter in areas that affect academic achievement, stress regulation and emotion processing (Luby et al. 2013; Hair et al. 2015). This helps explain why poor kids not only miss more school and do worse in school in the short term, but they also have poorer health, lower educational achievement, lower earnings, and higher mortality rates over the long term (Chaudry and Wimer 2016; Ratcliffe 2015; Cohen et al. 2010. On top of that, the cost of excellent daycare far exceeds what low-wage parents can pay. These children therefore largely end up in subpar day care (Child Care Aware (CCA) of America 2016, 38-39). Finally, the strain from working the long hours they have to work to make ends meet, combined with the stress of raising a family in poverty, leave these parents with few emotional reserves to parent well when they do finally come home at the end of the day (Yeung, Linver, and Brooks-Gunn 2002, 1875). In short, it's hard to think of a system less likely to deliver the circumstances children need to develop well than our current free-market system delivers to poor children.

III. Toward Pro-Family Regulation of the Market

A. *What's an Economy For?*

If we take the state's responsibility to support families seriously, we'd regulate markets very differently. To begin with, we would recognize that an important goal of the economy in a liberal democracy must be to get families what they need to thrive. This goal stems directly from the way that the recognition of dependency transforms the liberal project: the support for human dignity that Thomas Paine long ago recognized grounded the liberal project must be reconceptualized to include ensuring that citizens receive the caretaking and human development they need (Paine 1973). And that, barring some fundamental reorganization of society, requires ensuring that citizens have the resources they need to form sound, stable family relationships, and that families have the circumstances and resources they need to support their members well.

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Ensuring that the economy supports families requires recognition that markets are simply one piece of the larger economy. This represents a stark departure from how most U.S. economists and policymakers see markets today. They have come to believe that markets *are* the economy. Furthermore, they unquestioningly believe that the goal of economic policy should be to increase wealth, often thought of solely in terms of increasing the nation's Gross Domestic Product (GDP). The economist Kate Raworth likens the way that GDP growth has taken over as the economic goal to the egg of a cuckoo bird that has been laid in the nest of another variety of bird. Just as these unsuspecting feathered foster parents nurture the young cuckoo in their nest in the belief that it is their own, Raworth argues, policymakers have mistakenly come to see increased GDP growth as the be-all, end-all of economic success (Raworth 2017, 27-31). Their focusing solely on growth has eclipsed everything from the economic picture except markets.

In fact, seeing the economy solely in terms of markets, and seeing the goal of the economy in terms of increased GDP are both relatively recent phenomena, both of which have little to recommend them. The GDP was first developed as a measure only in the 1930s – well after the rise of markets. Simon Kuznets, who fashioned the measure, himself warned that it provided a poor index of the country's well-being, which he saw as the proper goal of an economy. "The welfare of a nation can…scarcely be inferred from a measurement of national income," he wrote in a 1934 report (Kuznets 1934).

As most political theory students learn, the term "economy" was not fashioned as a synonym for "markets." Instead, the term comes from the Greek word "oikos," which the Greeks used to refer to the extended family unit that included family, servants, farmland, and all property. The term "economy," which became associated with the system of agriculture and resources that supported people, was originally associated with the household because, in ancient Greece, most households received their resources through the "household economy," rather than through the "market economy" we rely on today. Properly understood, then, the economy is the system for distributing resources to people. Markets are a central component of that system in wealthy countries today, but they shouldn't be seen as its sum total.

In fact, most U.S. families met their economic needs through the household economy until well into the nineteenth century. Before then, except in the nation's seaboard towns, the great majority of American families lived on landlocked farmsteads. Given that our system of roads and highways wasn't built until later, these Americans had little access to trade, and little contact with the cash economy or the distribution web that we today call "the market." Unlike present-day farms, as economic historian Charles Sellers has observed, most early American farms weren't geared to selling crops or livestock to others. Instead, they simply met the needs of those living on the farmstead. Almost all the material goods that these citizens lived on came from their farms, sometimes supplemented by goods bartered with their neighbors. The goal of producing resources in the household economy wasn't to accumulate as much as possible, as it often is in the market economy. Any surplus couldn't be sold easily and wouldn't keep that long, anyway. Instead the goal was subsistence, meaning freedom from want. The goods produced on the farmstead sheltered, clothed, and filled the bellies of the household. After these needs were met, the purpose of work had been accomplished (at least when it came to men. For women, tasked with reproduction and domestic tasks, work was often ceaseless). Families' long-term goals were not to amass wealth for retirement or for the next generation, as it is for many of us, but instead to pass land on to their children and to maintain their way of life (Sellers 1991, 4-15).

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At the time most Americans transitioned from the household to the market economy during the course of the nineteenth century, the notion that the goal of markets was to improve the nation's wealth would have been foreign to them. Instead, Americans were sold the market economy on the promise that it would increase the wellbeing of families. For Americans to make the shift from the agrarian household economy to the urban market economy, they need to be persuaded of the advantages of the new system. The sales pitch came to be based on what the market economy would do for families. This pitch came in the form of a rising set of ideas that began to take shape in the late eighteenth century, but which only came into full flower in the nineteenth century. Historians call it the ideology of "separate spheres," or sometimes the "cult of domesticity," or even just "domesticity" for short. This way of seeing the world began in the Northeast but spread widely across the United States (Cott 1977, xx–xxii, 1, 33; Ryan 1981, 230–36).[3]

Why would Americans choose to give up their economic autonomy on the farm and submit themselves to the rising brutality of the workplace and the far longer hours required in industry? Separate spheres ideology gave a clear answer: For the wellbeing of their families. Men's reward for their toil in the workplace (which separate spheres saw as uniquely the province of men) came from returning home to a warm hearth and home, a happy wife, and well-raised children (Stanley 1998, 148). One New Hampshire pastor put it this way in 1827:

> It is at home, where man . . . seeks a refuge from the vexations and embarrassments of business, an enchanting repose from exertion, a relaxation from care by the interchange of affection: where some of his finest sympathies, tastes, and moral and religious feelings are formed and nourished; -- where is the treasury of pure disinterested love, such as is seldom found in the busy walks of a selfish and calculating world. Nothing can be more desirable, than to make one's domestic abode the highest object of his attachment and satisfaction (Burroughs 1827, 18–19).

The farmstead had been depicted unsentimentally in the era of the home economy; not so the home in the market world. Under separate spheres, the domestic realm was the place in which warmth and happiness belonged. Phrases like "home is sweet," and "there is no place like home," proliferated (Cott 1977, 85). And the price of the warmth and happiness of this realm was the wage work that men would have to endure. As Senator Henry Wilson was decades later to declare to freed black men in Charleston, South Carolina at the end of the Civil War: "Freedom does not mean that you are not to work. It means that when you do work you shall have pay for it, to carry home to your wives and the children of your love" (Child 1866, 260).

While part of the ideology of domesticity offered material rewards, the central lure was the thriving families it promised. The idea that family life was the reward for wage drudgery was clearly distilled in this poem published in the *National Labor Tribune* in 1874:

> Though coarse his fare, and scant his means of life,
> Thought of his children and loving wife
> Makes rich amend for all his toil and strife.
> As fades the last ray of setting sun,

[3] This is not to say, however, that the ideology of domesticity was universally or passively accepted. Both Christine Stansell and Nancy Cott describe the many ways that urban working-class women resisted its demarcation between private and public. See Stansell (1986); Cott, (1977). For a discussion of the ambivalent reception of black families to the ideology, see, e.g.., Horton (1979); Sterling (1984); Jones (1985).

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His home is reached, his daily task is done;
His young ones watching at the open door
He sees with joy, and hastens on the more.
Within the housewife, partner of his weal,
Prepares with busy hand the evening meal….
Arrived within, she greets him with a smile
And sweet caress – the welcome home….
(quoted in Stanley 1998, 165).

The market economy at this time wasn't seen simply as an inevitable feature of the world, like a longstanding mountain, as it so often is today. Nor was its end simply seen as increasing the nation's wealth, regardless of the market's effects. Instead, it was considered valuable as a means to an important end: flourishing families.

Recognizing that a central part of the liberal project requires an economy that truly supports the wellbeing and dignity of individuals, as well as the wellbeing of families, helps put markets back in their proper place. When it comes to getting people the conditions and resources they need to thrive, markets do an excellent job at a couple of very big things: They produce and distribute goods and services that can be monetized to people who desire them, and who have the ability to pay. But many things that people need to thrive, like the nurturing that parents provide, aren't distributed through markets. And the things that are distributed through markets, like high-quality daycare or home health aides to ailing seniors, aren't affordable to many of the families whose members would benefit from them.

Mainstream economic theory's obsessive focus on markets has caused it to ignore the important work done by families. That work was traditionally performed by women, and it still is disproportionately done by them. Instead, conventional economists have tended to view families largely in terms of their consumption. But, as feminist economists have pointed out, even the shortsighted goal of healthy markets couldn't happen without families' unpaid caretaking and human development work to produce future workers (Folbre 2002). And once we move to the more farsighted issue of how to ensure the important goal of human flourishing, families move to the center of the economic picture. The many tasks they accomplish, including not only the raising of children, but the grocery shopping, the cooking, the straightening of the house, the caring for aging parents, help ensure that children and adults of all ages thrive. And it's all these tasks that are getting squeezed out by the increased demands of the market.

We need to structure the economy in order to ensure that families get both the circumstances and resources they need to do their job well. We also need to ensure that the important caretaking and human development work that many women used to perform in the home is still getting done well in our era, in which far more women work in paid jobs. This brings to the fore the importance of government. Free-market advocates are openly derisive of the state's role in the economy. Government, they claim, improperly distorts market incentives when it acts in the economic sphere. And to the extent that they concede the government has any role in regulating markets, it is only to correct for what they consider to be market failures. But once we focus on ensuring that people get what they need to thrive, which also means ensuring families get what they need to thrive, a far more active role for government emerges that goes well beyond correcting for market failures.

In fact, as Jacob Hacker and Paul Pierson point out, for most of the twentieth century, economists and policymakers generally recognized the virtues of what economic analysts call a "mixed economy." In that arrangement, markets were seen to play the central role in producing

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and distributing goods. But government was also recognized to play an important role in the economy – providing collective goods like education, courts, supporting basic scientific research that the market wouldn't on its own, and reducing negative spillover costs like pollution, which markets don't do well on their own. Only in the last decades, as free-market ideology has proliferated in the United States, have the virtues of a mixed economy been forgotten (Hacker and Pierson 2016).

B. Pro-Family Policy

In all, there are five critical functions the state must play in structuring advanced market economies to support families: First, the state must partner with parents when it comes to providing the caretaking and income our youngest kids need from their families. Second, when it comes to the caretaking children receive outside their homes, the state should invest in excellent day care and early childhood education, as well as after-school programs for older children. Third, it must regulate the economy to reduce the economic inequality and insecurity to which markets are prone. Fourth, it needs to backstop families who can't afford important market goods by providing a social safety net. Fifth, and finally, the state needs to play "traffic cop," to keep markets within their proper bounds, making sure that workers have the time they need for fulfilling family lives. Together, these five principles form the basic tenets of what I call "pro-family policy." Each principle is discussed in turn.

1. Partnering with Families to Provide the Circumstances Our Youngest Children Need Inside the Home

Young families in systems that expect parents to support their children privately face an impossible task. A growing body of research suggests that babies do best if they are cared for by a parent or parents for at least the better part of a year.[4] Most new parents are relatively young, though, and therefore at the beginning of their work life, and with little savings. Furthermore, many are in debt from college loans (at least in countries that don't subsidize college) and buying a home – two hallmarks of responsible adulthood. Most parents in these systems simply can't afford to pay their own way for themselves and their children, while still having a parent take off time to stay home with their youngest. Because they can't afford to do both, most parents wind up sacrificing the care that would be best for their kids in order to put food on the table.

A system that sets up the vast majority of parents to fail at getting kids what they need abdicates the state's responsibility to families. It is also bad policy. Good public policy can be summed up with the credo that it should "make it easy for people to do the right thing." When it comes to families, and particularly families with young children, doing the right thing means investing significant time, attention, and nurturing, as well as providing excellent care if a parent works. Pro-family policy partners with parents to make it as easy as possible for parents to get kids what they need.

To do that, pro-family policy provides for publicly-paid parental leave that wholly or mostly replaces a parent's salary in the child's first year. Doing so means that parents are not required to choose between providing materially and providing caretaking when kids' need for parental caretaking is high. Kids can therefore get both. After the child's first year, when kids do

[4] I summarize this research in Eichner (2020).

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well either in parental care or in excellent day care, the state may also subsidize parents to stay home with their kids, in situations in which the family prefers parental care to day care.

Pro-family policy also pays parents monthly "child benefits" to ensure that families can provide their kids the material support they need. Children's basic upkeep is costly. There are diapers and often bottles to be bought at first, and then clothes, shoes, and books, and all this on top of extra food, rent, and furniture. And for children to do best, this provision needs to be steady and secure. Yet children's added costs come early in parents' work lives, and at a time that caretaking demands are high so parents can't work long hours in paid work.

Monthly child benefits paid to parents with young children ease these problems with timing. Later, as children's need for caretaking drops, and their parents' salary rises, the state will generally recoup these funds through income taxes during the remaining course of parents' careers. These benefits also help parents ensure children steady material support they need when children need it, regardless of the vicissitudes of market forces on families.

2. Generous Public Investment in External Care Programs for Young Children

When children are ready for daycare and prekindergarten, assigning young families responsibility to purchase it through the market results in a profound underinvestment in children's development. This is because high-quality daycare is beyond the financial reach of most young parents (Child Care Aware (CCA) of America 2016, 36-37). The state should correct this through generously subsidizing both daycare and prekindergarten. With such investment, the state could ensure that all children have access to high-quality programs, either completely subsidized for all parents, or available for a sliding-scale fee. Public investment wouldn't mean that the state would need to provide this daycare itself, just that it would pay for these services.

3. Limiting Economic Inequality and Insecurity

a. Limiting Inequality

The state also has an important role to play in limiting economic inequality in order to support families. It's not just poverty that has a corrosive effect on families, it's also inequality. At the bottom of the economic slope, economic inequality keeps adults from entering into stable, long-term relationships. The stress it creates reduces the quality of parents' caretaking for their children. All across the economic slope, it creates an overamped competition for success in the market that induces workers to work long hours and saps vital energy from other spheres of life. Government regulation of the market can and should reduce the steepness of this slope.

In the United States today, reversing this inequality should start with raising the minimum wage significantly, as well as indexing it to inflation to prevent its benefits from being eroded in future years. We also need a tax system that puts more of the burden on the wealthy. Increasing marginal tax rates on the very rich not only reduces the tax burden on low- and middle--income workers, it helps reduce inequality, both by constraining accumulation by the wealthiest households and by reducing incentives on CEOs and hedge fund managers to draw the highest salaries that they can. High marginal tax rates at the upper end of the income spectrum also reduce workers' incentive to spend long hours in the workplace to compete for

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disproportionate rewards, and therefore discourage the kind of race to the bottom we see at the high end of work hours today. Further, we need to strengthen the hand of unions to bargain collectively for higher wages for workers.

Many of these policies are currently used in wealthy European democracies to support families, and could serve as models. A number of these countries have mandatory minimum wages set at a relatively high percentage of the median wage of workers, and far higher than current U.S. minimum wage (OCED 2018). These countries have empowered unions in ways that have lifted workers' wages and working conditions. In countries like Sweden that have allowed unions to run unemployment insurance systems, union membership has risen dramatically (Western 1997, 58). Other countries extend the collective bargaining agreements negotiated between an employer and a union to the entire sector of workers, so that all workers are covered by the agreement (Eurofound 2015, 27).

b. Limiting Insecurity

To serve their function of getting goods and services into the hands of the families who want them, employers need to have sufficient flexibility to respond to market signals. That means that some jobs inevitably will be phased out as demand weakens, while others will be phased in as demand increases. Of course, the fact that a new worker somewhere will likely be hired doesn't help a worker's family that is suffering from a layoff. Pro-family policy allows this market restructuring, while still meeting workers' and their families' need for steady material provision. To serve both ends, rather than attempting to provide families' security through workers' attachment to individual jobs, pro-family policy seeks to build the economic stability that families need into the broader economic system.

Sweden and Denmark have both adopted programs that accomplish this, often called "flexicurity" to emphasize their combined goals of employer flexibility and worker security. These programs combine flexible rules that make it easy for the employers to hire and fire workers based on market demand. At the same time, employees who are laid off can get unemployment benefits for significant periods of time. Flexicurity policies also help displaced workers find new job opportunities (OECD 2016, 135). To do so, significant public funds are spent on retraining programs and providing incentives to private employers (OECD 2017). Under pro-family policy, all market societies would adopt such measures.

Building more security into the larger economic system would not only ease families' burdens when market dislocations occur, they would make family life easier in the normal course of affairs. Reducing economic insecurity would lessen the incentives for anxious employees to work excessively long hours in order to keep their jobs. It would therefore allow workers to get home sooner at the end of the day, as well as have more time for leisure and other pursuits. And when workers are home with their families, it would allow them to focus on their partners and children, rather than worrying about whether they will be able to pay their bills in the upcoming months.

4. Establishing a Strong Social Safety Net for Families

Under pro-family policy far fewer families would need safety-net programs. Other pro-family policies – including the parental leave and child benefits that all families with children would receive, in combination with measures that reduce economic inequality and economic

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insecurity, as well as the pay parity for part-time work and childcare subsidies so that parents can more easily work for pay – will mean that fewer families can't make ends meet. But this won't always be the case for all families. There will inevitably be some situations in which markets combined with universal benefits won't be adequate. Dealing with these situations requires a strong social safety net.

Pro-family policy would not allow any family with children or other dependents who need caregiving to go hungry or without a roof over their heads simply because they can't secure sufficient income on the market. This means that government will provide basic levels of income and housing support for those who aren't able to earn sufficient income to meet these basic demands through market work. These programs wouldn't mean that the state couldn't require able adults to engage in reasonable levels of productive work, at least during periods when they are able to work and don't have significant caretaking responsibilities for family members. But it would mean that families wouldn't be deprived of basic levels of support simply because adults couldn't find work, or because, when they do, the market doesn't reward them sufficiently.

5. Playing Traffic Cop: Ensuring That Workers Can Combine Work and Family

Last, but not least, work hours and schedules of citizens shouldn't be left to the vagaries of the market. Instead, they should be set in accordance with a collective commitment to allowing everyone to combine paid work with family lives. Six such measures together would create an economy that truly allowed people to reconcile work with family responsibilities.

a. Limits to Work Hours

The importance of sound families to the liberal project means that the state should support workers being able to return home at a reasonable time at the end of the workday. This can be accomplished either through regulation that sets a reasonable standard workweek, or through establishing a process through which working hours can be collectively bargained between workers and employers at a company or across a job sector. Both types of arrangements, or some combination of the two, are now in use in European Union member states (Eurofound 2016, 35-39).

Many European countries have adopted workplace regulations that serve this function. A number of them have adopted a standard workday of eight hours, and a standard workweek of 40 hours as a baseline (Eurofound 2016, 35 fig. 11). To accommodate intermittent periods of high demand, employers can average the maximum hours over a period of weeks, thereby allowing them to exceed the maximum weekly hours for short periods of time. Work beyond the baseline hours up to a maximum number of hours (now 48 hours a week in European Union countries) is allowed only on certain conditions, normally including that an employee agrees to the overtime work. And when employees do agree to overtime, they must receive either overtime pay or compensatory time for those extra hours. In these systems, employers may not penalize employees who refuse to agree to overtime.

b. Paid Vacation

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Furthermore, the state should mandate a statutory minimum period of annual leave, paid by the employer, to ensure that workers have adequate personal and family time. The minimum of 20 paid vacation days in place in most European Union member states is a reasonable place to start (Eurofound 2016, 49).

c. Predictable Work Hours

In addition, the state should regulate to require that employers give employees reasonable advance notice of their work schedules so that they can plan their lives and their child care and dependent care. Employers should also be required to give good-faith estimates of the number of hours that employees will likely work at the time they are hired, as well as whether employees will have to work on-call shifts. And employees should also be required to receive a set minimum number of hours between shifts.

d. Part-Time Work for Parents with Young Children or those with Elder-Care or Other Caregiving Responsibilities

A pro-family economy also needs to ensure that parents and others with caretaking responsibilities can work part-time without being disproportionately penalized. The United Kingdom provides a good model for such a system. Under U.K. law, employees who have worked more than one-half a year with the same employer have the right to request reduced working hours. While employers don't have to grant the request, they can refuse it only for specified business reasons. When the United Kingdom adopted this policy for parents with a young child under six or a disabled child, it turns out that a million parents – one-quarter of the number of parents eligible – made such requests in the first year alone (Waldfogel 2006, 68).

In 2013, after the law was extended to parents with children under 17, employers approved eight in ten requests for temporarily reduced work hours, while approving over 90% of requests for permanently reduced work hours. This system worked so well that the following year the United Kingdom expanded it to give all employees the right to request, regardless of caregiver status (Department for Business, Innovation, and Skills 2014, 50, appendix C table 27, 31). The Netherlands recently introduced a law that provides even stronger protections for employees. That law requires that employers show a compelling business interest in order to reject a request for part-time scheduling (Bird and Brown 2018, 74). U.K. law requires that those employees who work part-time be paid equal hourly pay compared to full-time workers, receive benefits on a pro-rata basis, and be treated no less favorably than comparable full-time workers when it comes to layoffs (GOV.UK 2018).

e. Work-Time Flexibility

Pro-family policy also supports employees being able to adjust their work schedules to accommodate family responsibilities. Where it is practicable for the employer, employees should be able to negotiate modifications to their work schedules to accommodate family responsibilities, either through adjusting their daily work hours; through taking breaks in their normal working hours; or through working from home for a certain amount of time each week.

Even in the United States, precedent exists for laws supporting flex-time. Since 2014 Vermont employees have had the right to request a flexible work arrangement for any reason without retaliation by the employer. Furthermore, the employer must grant the request unless it is

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"inconsistent with business operations," although the circumstances that fall within this category are broad (Vermont General Assembly 2014, 21.005.001 §309(f)).

f. Paid Family Leave for Illness of Family Members

Finally, workers who need time off from work to care for a family member should be entitled to publicly-paid leave. Here, too, models for such paid leave are already in place in the great majority of wealthy democracies. Roughly half of these countries provide at least three months of paid leave for children's health needs; a minority of them also provide three months paid leave for adult family members' health needs. The majority of these countries that provide paid leave provide a wage replacement rate of at least 80% (Raub et al. 2018, 2-4). Every country should join them.

Conclusion

Liberal theory is beginning to fill in the gap left by its previous blind spot on issues of dependency. Yet one important gap that remains is the government's responsibility to families, the primary institution through which dependency issues are addressed in our society. Filling in this gap is particularly important when it comes to the relationship between families and the market in wealthy societies because of the complicated and contradictory relationship between families and the market. On the one hand, markets have contributed to the great rise in living standards from which many families in developed countries have benefited. Yet on the other hand, market forces, including the inequality and insecurity to which market societies are prone, also have great potential to undermine families.

The transformation of the liberal project required by the recognition of dependency makes regulation of markets to support families critical. Once the fact of dependency is acknowledged, the liberal state can no longer simply safeguard some combination of the freedom and equality that autonomous adults require, as traditional liberal theory would have it. Instead, the state must also concern itself with the project of ensuring that children get the caretaking and human development they need so they can become the sound adults depicted in liberal theory, and that adults receive the caretaking they need to thrive throughout their lives. That project cannot be carried out without sound families. Insofar as the market today is undermining the soundness of families, considering how the state should regulate markets must become a central subject for liberal theory. Until liberal theory fills this gap, it will not have adequately dealt with the recognition of dependency as a fundamental part of the human condition.

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